

GOVERNMENT OF INDIA STATUTORY REGULATORY REPOSITORY

AYURLEX COMPLIANCE HANDBOOK — PATENT LAW & TRADITIONAL KNOWLEDGE EXCLUSIONS

1. Patent Law & Traditional Knowledge Exclusions

Domain Identifier: patents | Statutory Authority: Controller General of Patents, Designs & Trade Marks (CGPDTM)

Legislative Base: The Patents Act, 1970 (Act No. 39 of 1970) as amended by the Patents (Amendment) Act, 2005, read with The Patents Rules, 2003 and the Manual of Patent Office Practice and Procedure.

Key Statutory Sections Indexed in AYURLEX:

- **Section 2(1)(j) — Definition of Invention:** Requires a new product or process involving an inventive step and capable of industrial application.
- **Section 2(1)(l) — Novelty:** Any invention or technology which has not been anticipated by publication in any document or used anywhere in the world prior to filing.
- **Section 2(1)(ja) — Inventive Step:** A feature of an invention that involves technical advance as compared to existing knowledge or having economic significance, making it non-obvious.
- **Section 3(p) — Traditional Knowledge Exclusion:** Explicitly declares that an invention which in effect is traditional knowledge or aggregation/duplication of known properties is *NOT an invention*.
- **Section 3(e) — Mere Admixture Bar:** A substance obtained by mere admixture resulting only in aggregation of properties is barred. Requires comparative pharmacological data showing synergy (Combination Index $CI < 1.0$).
- **Section 10(4)(ii)(D) — Biological Material Disclosure:** Mandatory disclosure of the source and geographical origin of biological materials used in the invention.
- **Section 48 — Exclusive Rights Conferred:** Statutory monopoly right to prevent third parties from making, using, offering for sale, selling, or importing the patented subject matter.
- **Section 53 — Term of Patent:** Valid for twenty (20) years from the date of filing of the application, subject to annual renewals.

Statutory Forms, Portals & Government Fees:

- **Official Filing Portal:** IP India Comprehensive e-Filing Portal (ipindia.gov.in). Prior art search portal: InPASS (ipindiaservices.gov.in).
- **Form 1:** Application for grant of patent (Basic applicant information).
- **Form 2:** Complete / Provisional Specification (Includes background, technical drawings, examples, and claims).
- **Form 3:** Statement and undertaking regarding foreign filings under Section 8.
- **Form 5:** Declaration as to inventorship.
- **Form 18:** Request for Examination (RFE) — must be filed within 48 months from filing.
- **Statutory Fees:** ₹1,600 for Individuals / Startups / MSMEs (₹8,000 for standard corporate entities).

Optimal RAG Queries for this Dataset:

1. 'What is a patent under Indian law?' → Returns two-layer plain language explanation + Sections 2(1)(j), 48, and 53.
2. 'How to file a patent in India?' → Returns sequential 6-step roadmap from InPASS search to Form 1-18 filing.
3. 'Can I patent an Ayurvedic herbal formulation of Ashwagandha and Turmeric?' → Returns legal bar under Section 3(p) and synergy requirements under Section 3(e).
4. 'How to overcome Section 3(e) objection in an Indian patent examination?' → Returns bioassay Combination Index protocol ($CI < 1.0$).